

A Dene Journey :1975-2011

Michael Jackson K.C.

In 1975–7 I was special commission counsel to Justice Thomas Berger in the Mackenzie Valley Pipeline Inquiry. The inquiry was a seminal event in Canadian history bringing together issues of Aboriginal rights, environmental protection of vital ecosystems and industrial development in the Canadian North. The central part of the inquiry was hearings held in the Dene and Inuvialuit villages along the Mackenzie Valley and in the Mackenzie Delta in community halls, one-room log schoolhouses and hunting and fishing camps in the bush and on the sea ice. In these hearings the Aboriginal peoples related their experiences of colonization, the distinctive values upon which their cultures were still based and articulated their vision of the future of their northern homeland through modern treaties that would represent the completion of Confederation grounded in the right of self-determination for the peoples of the Fourth World. The Inquiry captured the imagination of Canadians as few others had. The Berger Inquiry Report was a national best seller.

In 2011, some 36 years after I first visited the communities in the Mackenzie Valley and Delta, I returned not as a lawyer working for a royal commission but as part of a remarkable educational project designed to give back to the communities' young people the words and images of their parents, grandparents and great grandparents. As part of my work as special counsel I had taken over 1000 photographs of the community hearings to provide a visual documentary record. The photos - taken without flash to avoid disturbing the speakers- provide not just a historical archive but, as I will explain, a contemporary tool for legal education

Hearing Fort Simpson 1975



Hearing Fort Liard 1975



Hearing Fort Good Hope, 1976



Hearing Fort Good Hope 1976

Hearing Kakisa Lake 1975



Drew Ann Wake, who during the Berger hearings had worked as a radio reporter for CBC and had gone on to design web-based educational programs for young people dealing with social justice issues, had a parallel archive of many of the audio tapes of the community hearings. In 2010 she met with me about a proposal to combine the audio and visual archives that would bring them back to the communities as part of a living oral history of the pivotal events of these years. In May-June 2011, Drew Ann and I together with Peter Gorrie, who had covered the hearings as a reporter and then Editor of the News of the North, Linda MacCannell, a University of Calgary based photographer, and Felix Isaiah, a young Dene videographer from Fort Simpson, visited the six Dene communities in the Dehcho region. Also on parts of the trip were Elizabeth Hardisty who had worked during the years of the hearing for the Indian Brotherhood of the NWT – later the Dene Nation- as a community fieldworker assisting with the development of the Land Use and Occupancy Maps. In Fort Providence we were joined by Patrick Scott, who worked as the CBC cameraman during the Berger hearings and now worked as a negotiator for the Dehcho. His Ph.D. thesis about the Berger Inquiry has been published in a 2007 book “Stories Told.” The trip was partly funded by the Dehcho Educational Society, a regional division of the NWT Department of Education. The Society’s superintendent, Terri Jaffray and science advisor Brian Jaffray were attracted to the project as a complement to the Dene Kede, a groundbreaking indigenous based curriculum.

Although I had not visited the Dehcho communities since the Inquiry days, I felt that I had remained connected to the people because every year in my Aboriginal and Treaty Rights seminar at the Faculty of Law I watched with my students “The Inquiry Film”, a documentary made in 1977 that included extensive footage of the community hearings together with interviews from some of the Dene leaders with whom I had worked. Watching the film was the next best thing to seeing them again. I had also kept up to date with developments in the settlement of land-claims in the NWT and the current proposals for a new Mackenzie Valley pipeline. In this way in each year of the intervening three decades I saw the Dene leaders as I remembered them and that of course is how they remembered me, as young men and women in their twenties and early thirties. As I flew

into Fort Simpson one of my concerns was whether we would recognize each other with the passage of these many years. In most cases the connection we had made was such that recognition was mutual and in 2011 we saw each other in the mirror of the past despite the fact that we were all now grandfathers and grandmothers.

Michael Jackson,

Betty Menicoche

Rene Lemothe

(now Elizabeth Hardisty)

All at Fort Simpson, 1975





The same people, 36 years later, Fort Simpson

Chief Jim Antoine left, with Louis Norwegian, right

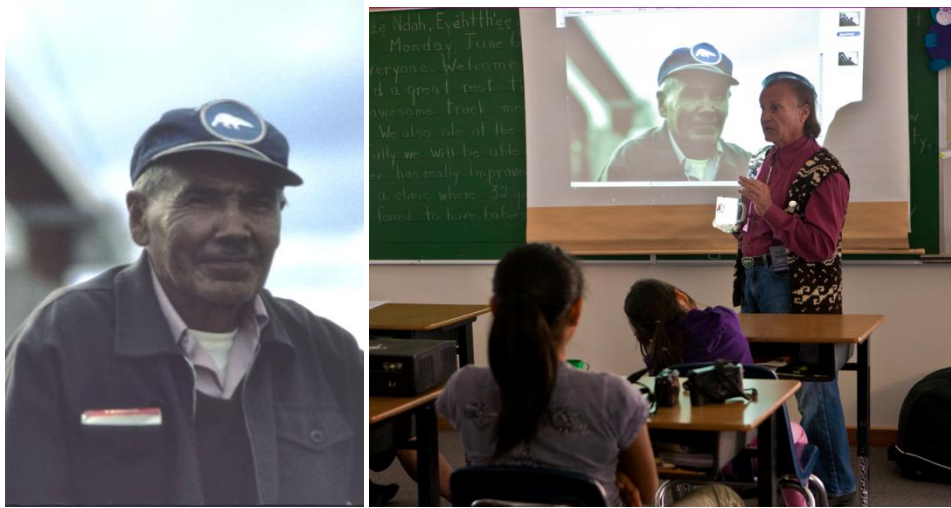
Jean Marie River, 1975

Chief Jim Antoine, Fort Simpson, 2011



Over the course of two weeks we journeyed by plane, road and river to the six communities that make up the Dehcho. The visits to each community centered around meeting with children in the school, at which I explained the significance of the contributions of those that spoke at the Inquiry and showed the students photographs of the hearings held in their community in 1975 and 1976. Prior to our visit Drew Ann had identified a key speech made in each of the communities and asked an appropriate member of the community to read selected passages from the speech. In Fort Simpson that person was Jim Antoine who as the 25-year-old newly elected chief had addressed Judge Berger in 1976, shortly after the proclamation of the Dene Declaration. In the intervening years Jim had entered territorial politics and became the Premier of the Northwest Territories. He had retired from territorial politics and was now once again the chief of the Liidiii Kue/Fort Simpson Band. In Jean Marie River, Andy Norwegian, the son of Chief Louis Norwegian, has played a leading role in invigorating Dene oral history and developing written Dene language materials for use in the schools and it was he, who following in his father's footsteps, recorded parts of the speech delivered by his father to the Inquiry articulating the central Dene concept of sharing. In Fort Providence it was the former Chief Michael Landry's grandson, who was the confident voice that recited his grandfather's words.

Louis Norwegian, Jean Marie River, 1975



An important part of this project was to connect young Dene to the legacy created by their families during the inquiry and to embrace it as part of their living history. We tried to do this in several ways. In each of the communities I spoke to the students, ranging from 5 to 15-year-olds, about the contributions made by members of their families in describing for Judge Berger and the Canadian public their history on the land, their values as Dene and their hopes for the future of their children and grandchildren - the very grandchildren to whom I was now speaking. The children were then divided into three groups, one working with Linda on how to get the best out of digital photography (using the cameras we had brought with us for the students' use), a second group working with Felix on operating sound and video equipment, and Peter took the third group and explained how press conferences work and helped the students develop a set of questions to be put to the elder who was reading the keynote speech from the inquiry for that community.

In Trout Lake after we had finished the classroom activities we moved to a site at the water's edge where Edward Jumbo, who was the sub-chief at the time of the Inquiry and addressed Judge Berger, read parts of his speech in the Dene language in which it was originally delivered. He sat at a table against a backdrop of shimmering light reflected off the water that on this day was azurean, more commonly seen in the Aegean rather than a cold northern Canadian lake. His words were documented by the students using the digital cameras and recorded using the sound and video equipment. Based on the questions developed in the morning, Edward's granddaughter interviewed him focusing

on the changes he had seen in the community over the many years since the inquiry visited the community. The questions and his answers were translated to and from the Dene language by Edwards daughter, Yvonne. Thus three generations were engaged in remembering this important part of the community's history and development.

Edward Jumbo at Trout Lake May 2011



In Jean Marie River, Andy Norwegian, who brought our group by boat from Fort Simpson to Jean Marie – traveling the same route that I had done 35 years earlier with Jim Antoine and Phoebe Nahanni in my several visits to Jean Marie in preparation for the community hearing - read parts of his father's speech in a tepee that had been set up alongside the now closed log schoolroom.

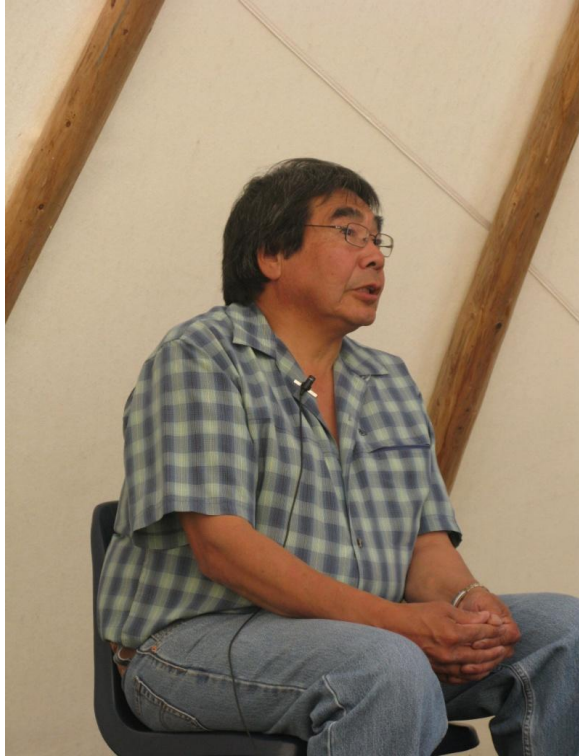
A press conference was then held and the theme of the students' questions was whether the Dene ethic of sharing that Chief Louis Norwegian had spoken of in 1975 was still an important value to young Dene in a contemporary world in which consumerism and technology so dominated. As Peter Gorrie told the students, after Andy had explained what they would lose if sharing disappeared from their lives, the exchange at this press

conference could teach a lesson or two in respectful dialogue to the professionals who engaged in media scrums outside the House of Commons.

Peter Gorrie and the press conference students, Jean Marie River, June 2011



Andy Norwegian at the press conference Jean Marie River, June 2011



In Fort Providence the press conference took on an added contemporary dimension. Through a video hookup over the internet with Tom Berger in Vancouver the students at the high school asked him for his reflections on the Inquiry hearings and his report and how he believed they had changed the course of history in the North for indigenous peoples. The questions and responses provided another invaluable opportunity for students to understand the contributions the people in their own communities had made to securing a future for their children.

My talk to the older students included a discussion of treaties and land claims. Although modern claim settlements have been reached with the Inuvialuit, Gwichen, Sahtu and Tlitcho, no agreement has yet been concluded with the Dehcho. To help students better understand the foundation for land claims agreements, in Trout Lake, Nahanni Bute, Fort Liard, and Fort Simpson Elizabeth Hardesty explained how, she with Phoebe Nahanni - without the benefit of the Internet - through the Land Use and Occupancy maps had documented the journeys on the land by the Dehcho and the animals, birds and fish they hunted, trapped and fished. These maps were developed for each community to support the claims of the Dene that they used and relied upon their traditional lands and waters to sustain themselves and provided evidence for their legal claims to Aboriginal title.

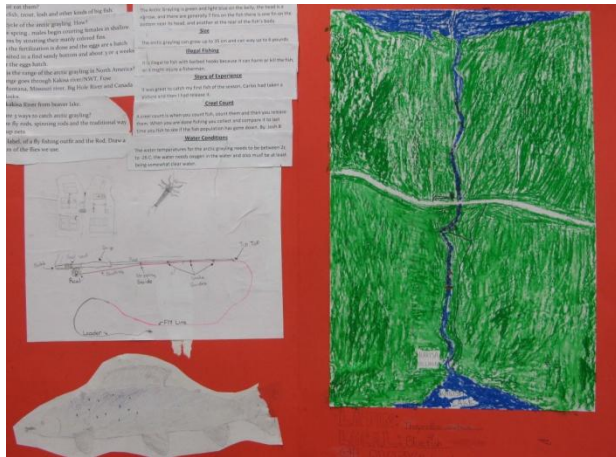
Elizabeth described how she would meet with hunters and on the maps traced their journeys to hunting and trapping grounds and by using coding assembled the information on the animals and fish harvested at different places in the territory. Some routes and areas were more intensely travelled and harvested and were reflected in different shading of the lines that radiated from each community. The students were then given maps of their own community and the surrounding area and were asked over the lunch recess to go interview a family member and trace on the map the journeys taken and the animals harvested over the past year, in this way replicating the original land use and occupancy study. In some cases the students returned with a map of their own journeys into the bush, making a highly personalized connection to the documentary record of Dene reliance on the land.

Elizabeth Hardistey helping a student prepare a land use map, Trout Lake, , 2011



In Nahanni Bute, the students had recently completed a land use map as a class project documenting a field trip to Kakisa Lake. Two of the older students over the lunch recess supplemented this by interviewing an elder about some of his experiences of life in the bush. When they returned they turned this into a CBC-style Evening News report that Felix videotaped.

The News from Nahanni Bute



Aboriginal and Treaty Rights class in Nahanni Butte



My photo archive of the community hearings proved to be the most delightful way of making the historical record come to life and bridge generations. At Kakisa Lake I met

with six students aged between five and nine. The older students were on a field trip that day and I was a little daunted by the prospect of explaining the significance of the Berger Inquiry to such young students. Fortunately one of the students resolved my hesitancy by telling me that his grandmother had heard a cougar the night before close to the community. I asked the children how a cougar sounded and received an eclectic education on cougar roaring. It now being clearly established who was the teacher and who the student and upon realizing that the youngest child in the room was only a little bit older than two of my grandchildren, Ethan and Jackson, I opened my presentation with my computer's desktop photograph of Ethan and Jackson watching Curious George and explained how they were related to me and that they lived in Hawaii.



Also on my laptop were photographs of the Kakisa hearing at which Chief Philip Simba and his son Henry had given the principal presentations.

*Philip Simba on left with the Land Use and Occupancy maps in the background
Kakisa Lake, 1975*



I had been told that one of the children was the great-grandson of Philip Simba and as it turned out five of the children were so related. I brought up the pictures of Philip Simba and explained to the children that he was the chief of the village long before they were born and had made a very important speech about his hopes for their future. One of Philip's great grandson's told me that he had died and asked me whether he was in heaven. Before I could answer Philip's great-granddaughter asked me if I thought he was an angel. These are not questions I typically field in the classroom at the Faculty of Law of the University of British Columbia. My answers were necessarily unrehearsed and I told the children that given how he had lived his life as a leader of the community I was sure he was in heaven and that as an angel he would be looking down today and be very happy that his great-grandchildren remembered him because it was to protect their future and their rights to the land that he had spoken those many years ago.

In addition to the picture of the hearings themselves I had taken a number of photographs of the landscape of the communities. At Trout Lake my 1975 photographs showed the log houses, a food cache on stilts, and some wildflowers. New serviced houses had been built in the village in the intervening years and there were now roads where there had only been trails before. On my first walk through the village I had not seen the images

reflected in my photographs. The children, however, on viewing the photos had no difficulty in taking me to the cache that had been recently repainted and, having guided me just a few yards from the road, placing me again amongst a lovely cluster of the same wildflowers that I had photographed.



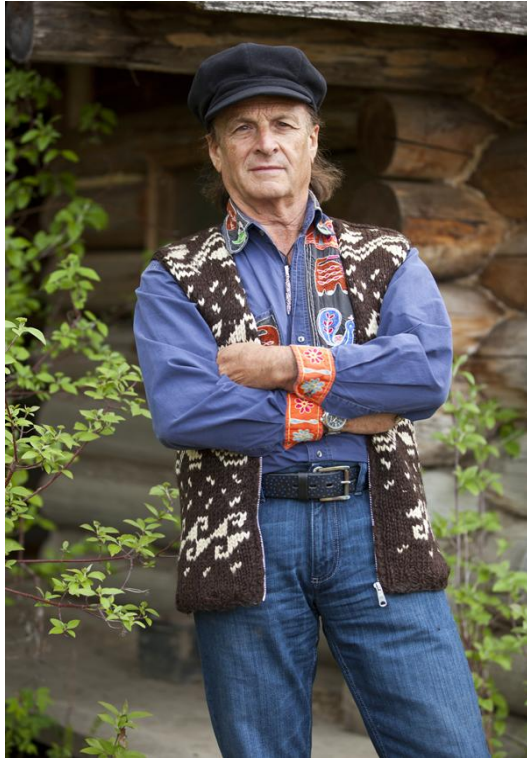
The collective joy at seeing in the photographs well loved faces of departed elders and much younger faces of those who are now elders was also part of the experience at Trout Lake. I did not have many photographs of the Trout Lake hearing. It had been difficult to get a properly focused shot taken of the whole scene and because my primary purpose in being at the hearings was to listen, not take photographs, in the smaller communities to avoid becoming intrusive I limited myself to just a few pictures. The one photograph I had of the hearing room at Trout Lake blurred the images of most of those present. I first showed the photograph at the lunch recess to several elders who had gathered outside the school and they were very excited at seeing the image.

The hearing at Trout Lake, 1975



In the front row of the picture was a young girl who looked around eight years old who they identified as Ruby Jumbo, the daughter of Edward Jumbo. Ruby was now the band manager. At the end of the day I was asked to show the photograph to a larger group that gathered to identify those in the picture, including Ruby. As I put the picture up on the screen I pointed to two of the men and asked if people could identify them. Everybody laughed and told me to turn around. I found myself facing the two men, Victor and Dave, side-by-side just as they were in the photograph, only 36 years older. Another individual whose face was very blurred was identified by the red hat he was holding, which I was informed he still had. He was not the only one who had kept some of the same wardrobe over the years. Throughout this trip I wore an iconic West Coast Cowichan woven vest and peaked beret that had become my calling card in my work in the communities during the Inquiry. Many people still recognized me by the vest.

Michael Jackson, at the South Nahanni River 2011



So it was in all the communities we visited; the photographs, regardless of whether they were in focus, generated an outpouring of emotion. Most of the elders in the photos had died, the lives of some of the younger people had ended prematurely but there were many stories of those who were still around that were recalled with joyful and exuberant remembrance. The photographs were clearly a treasure and in their digitalized form they will be returned to each of the communities.

But photographs were not the only thing that will be returned to the communities. An educational website for use both in schools in the Northwest Territories and in southern Canada, has been developed by Drew Ann that provides information about the Mackenzie Valley Pipeline Inquiry and its place in Canadian history, links to the speeches made at and the photographs taken of the community hearings. An integral part of the site is the work done by the students in making this history part of their contemporary life, including the photographs they took in the summer of 2011 and the press conferences they conducted with the elders. In this way young Canadian students will see that their generation, utilizing a spectrum of skills spanning traditional storytelling and the digital world, can use the history of their communities as part of their own life journeys.

In September of 2011 I was invited back to Fort Simpson to participate in an orientation for teachers in the Dehcho region, some of whom were teaching in the NWT for the first time. I had been asked by Superintendent Jeffray to give a keynote "inspirational" address to close the orientation on the significance of the Berger inquiry. My address took place in the open air rotunda built at the time of Pope John Paul II's visit to Fort Simpson in 1985 when His Holiness reaffirmed the recognition of the rights of indigenous peoples to their land first proclaimed in the Papal Bull of *Sublimis Deus* promulgated by Pope Paul III on June 4, 1537. During the three days I had sat in on one of the sessions led by Gladys Norwegian entitled "Introduction to the Trails to Becoming." These sessions gave the history of the development of the interactive CD which contained the building blocks for the Dene Kede, the Northwest Territories indigenous curriculum for Grades K-6 based on Dene indigenous knowledge, traditions and values. I learned that one of the key concepts that Dene culture values and seeks to encourage is that of Dene zue, which is translated as being a capable or competent person.¹ Growing up in a culture which extols excellence not just competence I was interested in understanding this concept of Dene zue and relating it to what I saw as the contributions of the Dene leaders during the Inquiry. From my further discussions with Gladys Norwegian I learned that being a competent person within the Dene worldview involved much more than the bare English translation conveys. It involves being a whole person in terms of one's relationship with the land, with the spiritual world, with other people and with oneself. It means living up to one's potential in light of one's responsibilities to self, family and community. In my talk I described how the work done by the chiefs, elders and the young Dene leaders in the 1970s in forging the concept of Dene nationhood, establishing in the courts the Dene understanding and spirit of Treaties 8 and 11, and through the Dene Declaration

¹ "The elders presented us with the knowledge, skills and attitudes that Dene should strive toward in order to become "capable". The kind of Dene that we were being asked to help create with this curriculum were "capable" people, ones who had integrity in their relationships to the spiritual world, land, other people and themselves. In the final analysis, our elders were telling us that as individuals, as a people, and as a species, we must become "capable" in order to survive. This can be narrowly understood to mean survival of a person on the land but it also mean survival of all humankind on this planet. The Dene Kede curriculum works for survival through our children. The children are viewed as our pathway into the future. It is hoped that if our children are given Dene perspective to guide them in establishing good relationships with the land, the spiritual world, other people, and themselves, not only will our identity be maintained, but we will all be closer to survival". Foreward to Dene Kede xiv Northwest Territories Education, Culture and Employment, Education Development Branch, 1993

articulating for the first time in Canada that the purpose of modern land claim settlements was no less than self-determination for indigenous peoples and the completion of Confederation, was Dene zue in action. The young leaders like Jim Antoine, Stephen Kafkwi, Richard Nerysoo, George Erasmus, Phoebe Nahanni, Elizabeth Hardesty and many others were the very exemplification of being Dene zue. In my talks earlier in the summer to young students in the communities I had invoked the concept of superhero in describing the challenges facing and the courage shown by Dene leaders in taking on the supposedly invincible power and wealth of multinational oil companies backed by the Government of Canada. To their teachers facing the challenges of giving meaning in the classroom to the Dene Kede curriculum I suggested that exposing the students to what was said by their fathers, mothers, grandfathers and grandmothers at the Berger hearings was a historical and contemporary tool to help young Dene students become Dene zue.

Fort Simpson Drummers, September 2011





